

TIARRA HEARNE v. THE MERITAGE APARTMENTS et al.
Case No. CU25-07564

MERITAGE's Demurrer and Motion to Strike

TENTATIVE RULING

Defendant THE MERITAGE APARTMENTS and BRIDGE WF II CA MERITAGE LLC (together "MERITAGE") demur to Plaintiff TIARRA HEARNE's complaint alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) breach of the warranty of habitability per Civil Code sections 1941 and 1941.1, (5) breach of the implied warranty of habitability, (6) unlawful business practices, (7) breach of the covenant of quiet enjoyment, (8) violation of Civil Code section 1942.3, (9) violation of Civil Code section 1942.4, (10) violation of the statutory duty to maintain habitable conditions, (11) breach of contract, (12) private nuisance, (13) public nuisance, and (14) premises liability. Summarized, Plaintiff's complaint alleges that Defendants failed to correct a bedbug infestation in Plaintiff's apartment unit rented from MERITAGE and operated and managed by Defendant JONATHAN SLAGER ("SLAGER"). MERITAGE simultaneously moves to strike the complaint's prayer for punitive damages.

The court has not received opposition to the demurrer or motion.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Battery. The elements of battery are (1) the defendant touched the plaintiff or caused the plaintiff to be touched with the intent to harm or offend the plaintiff, (2) the plaintiff did not consent to the touching, (3) the plaintiff was harmed or offended by the defendant's conduct, and (4) a reasonable person in the plaintiff's position would have been offended by the touching. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Allowing a bedbug infestation to exist does not involve the defendant here causing the plaintiff to be touched with intent to harm or offend. It is not a battery because there is no intent to harm or offend.

Negligence. Failure to correct a known bedbug infestation constitutes negligence. MERITAGE's argument that the cause of action is uncertain because it is not stated in the complaint is not well-taken as the complaint on file states negligence against all defendants on pages 11 to 16.

Intentional Infliction of Emotional Distress. The elements of a cause of action for intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard for the probability of causing, emotional distress, (2) the plaintiff's suffering severe or extreme emotional distress, and (3) causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) The conduct in question must also be directed at the plaintiff or conducted in the presence of a plaintiff of whom the defendant is aware. (*Id.* at p. 903.) "Outrageous" conduct is that which is so extreme as to "exceed all bounds of that usually tolerated in a civilized community" and "intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) Mere insults, indignities, annoyances, and petty oppressions are insufficient to state outrageous conduct. (*Ibid.*) "Severe emotional distress" is "emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it." (*Id.* at p. 1051.)

The complaint does not state intentional infliction of emotional distress as it does not state facts showing that Defendants acted with reckless disregard for the probability of causing distress. While Defendants allegedly failed to correct the bedbug infestation, the complaint alleges that SLAGER summoned pest control promptly on being informed of the bedbugs and arranged for a follow-up pest control visit when the first did not correct the issue. (Complaint at ¶¶ 17-20.) These facts do not show reckless behavior. Plaintiff also does not allege that she suffered severe emotional distress in anything but conclusory language.

Tortious Breach of Implied Warranty of Habitability. The elements for a breach of the implied warranty of habitability cause of action are: (1) the existence of a material defective condition affecting the premises' habitability; (2) notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition; (3) the landlord was given a reasonable time to correct the deficiency; and (4) resulting damages. (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.) A warranty of habitability is implied in all residential rental agreements. (See *Green v. Superior Court* (1974) 10 Cal.3d 616, 629.) Breach of the implied warranty of habitability, as any breach of contract, may be regarded as a tortious breach where an injured party demonstrates the defendant's intentional, malicious, and/or outrageous conduct. (*Smith v. David* (1981) 120 Cal.App.3d 101, 112 at fn. 3; *Jones v. Kelly* (1929) 208 Cal. 251, 255-256.) California law defines malice as "either (1) conduct which is intended by the defendant to cause injury to the plaintiff or (2) 'despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.'" (*Mock v. Michigan Millers Mutual Insurance Co.* (1992) 4 Cal.App.4th 306, 330.)

Plaintiff does not sufficiently allege a tortious breach of the implied warranty of habitability as, again, there is no sign of malice in the facts presently alleged about the failure to correct the condition where management promptly summoned pest control.

Unlawful Business Practices. Business and Professions Code section 17200, the “unfair competition law,” prohibits any activity that can be properly called a business practice and at the same time is forbidden by law. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 321.) The unfair competition law essentially borrows violations of other laws and makes them independently actionable when done pursuant to business activity; virtually any law can serve as the predicate for an unfair competition cause of action. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335.) Where the complaint sufficiently alleges statutory breach of the implied warranty of habitability (the sole cause of action not challenged on demurrer) and more against Defendants, all carried out as part of their practices in managing their rental business and their customer, Plaintiff, it sufficiently alleges unlawful business practices.

Breach of the Covenant of Quiet Enjoyment. The elements of a claim for breach of the covenant of quiet enjoyment are (1) a lease agreement between the parties, (2) the absence of language contrary to the implied covenant that the tenant shall have quiet enjoyment and possession, (3) an act or omission by the landlord or anyone claiming under the landlord that substantially interferes with the tenant’s right to use and enjoy the premises for the purposes contemplated, and (4) damages. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.)

The parties had a lease agreement affording Plaintiff quiet enjoyment and possession of rental premises. (Complaint at ¶ 126.) Defendants’ failure to correct the bedbug infestation affected her right of quiet enjoyment. This cause of action is sufficiently stated.

Civil Code Section 1942.3. Civil Code section 1942.3 creates a rebuttable evidentiary presumption in an unlawful detainer action that a landlord breached habitability requirements. It does not give rise to a cause of action.

Civil Code Section 1942.4. Civil Code section 1942.4 forbids a landlord from collecting rent, increasing rent, or issuing a three-day notice to pay rent or quit if the premises are in a substandard condition (per reference to other statutes) for at least thirty-five days and a public officer has notified the landlord of his obligation to abate or repair nuisance or substandard conditions. The complaint does not allege facts supporting these statutory requirements and so does not state a violation of Civil Code section 1942.4.

Negligent Violation of Statutory Duty. This cause of action appears to be a simple restatement of Plaintiff’s negligence cause of action and is thus duplicative.

Breach of Contract. To prevail on a cause of action for breach of contract a plaintiff must prove (1) the existence of a lawful contract, (2) his performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages. (*Richman v.*

Hartley (2014) 224 Cal.App.4th 1182, 1186.) The complaint does not state the terms of the contract between the parties with sufficient specificity to permit a finding that allowing the bedbug infestation to persist breached the contract.

Private and Public Nuisance Law. A “nuisance” is anything which is “injurious to health...or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.” (Civ. Code, § 3479.) A “public nuisance” is a nuisance that “affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.) A “private nuisance” is generally any nuisance that is not public, but a public nuisance may also be a private nuisance where it causes an interference with an individual’s use and enjoyment of land. (Civ. Code, § 3481 [private nuisance generally]; *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.4th 248, 261-262 (*Mendez*)). To qualify as a nuisance of either kind an interference with collective social interests must be both substantial and unreasonable. (*Mendez* at p. 262 [private]; *Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1547 (*Birke*) [public].) “The requirements of *substantial damage* and *unreasonableness* are not inconsequential.” (*Mendez* at p. 263 [emphasis in original].) Life in society involves unavoidable clashes of individual interests by its nature and so every individual in a community must be expected to put up with a certain amount of annoyance, inconvenience, and interference. (*Ibid.*) With this in mind, substantial interference is found where an ordinary person would be reasonably annoyed or disturbed by the interference and unreasonableness is found where the harm the interference poses outweighs the interference’s social utility. (*Mendez* at p. 263; *Birke* at p. 1548.)

Plaintiff sufficiently pleads private nuisance. She alleges an interference with her use and enjoyment of real property in that her ability to enjoy the rented premises was disturbed by the bedbug infestation. (*Wilson v. Southern California Edison Co.* (2018) 21 Cal.App.5th 786, 802-803 [elements of private nuisance].) She alleges that the invasion of her interests was substantial, meaning that a normal person in the locality would be substantially annoyed or disturbed, because a normal person would be substantially annoyed or disturbed by a bedbug infestation. She alleges that the invasion of the plaintiff’s interests was unreasonable, meaning that the social utility of the invasion does not outweigh the harm to the plaintiff, because there is no apparent social utility to allowing bedbug infestations.

Plaintiff does not state public nuisance, though, because she states no facts that could support finding that the nuisance affected a considerable number of persons. Plaintiff only speaks to her one apartment unit.

Premises Liability. Premises liability is a form of negligence and so requires proof of the existence of a duty owed to the plaintiff, breach thereof, and resulting damages to the plaintiff. (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.) This cause of action is duplicative of Plaintiff’s cause of action for negligence.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Per the above analysis of the demurrer Plaintiff does not state malicious or oppressive conduct in Defendants’ acts as presently alleged.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiff filed no opposition and so offers no argument as to how she could correct any identified deficiencies.

Conclusion. MERITAGE’s unopposed demurrer is sustained without leave to amend with regard to the causes of action for battery, intentional infliction of emotional distress, tortious breach of the implied warranty of habitability, violation of Civil Code sections 1942.3 and 1942.4, negligent violation of statutory duty, breach of contract, public nuisance, and premises liability.

MERITAGE’s demurrer is overruled with regard to the causes of action for negligence, unlawful business practices, breach of the covenant of quiet enjoyment, and private nuisance.

MERITAGE's unopposed motion to strike is granted. The complaint's prayer for punitive damages is ordered struck.

PORTFOLIO RECOVERY v. MARISEL ESPINOZA
Case No. FCM 171055

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves **for a second time** to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation. Plaintiff's motion is again served on Defendant by mail.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant ESPINOZA's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

Plaintiff already knows this answer because Plaintiff has been told this answer twice before in this same case. On June 16, 2022, Judge Carringer advised Plaintiff of this due process issue and continued the motion to enter judgment to August 11, 2022 in order to permit Plaintiff to cure this issue. On August 11, 2022, Plaintiff had taken no action to cure the issue, did not appear and the motion was denied.

There is no good cause for Plaintiff to refile a motion that was previously denied (after a continuance to permit the law firm to cure the defect) with no change of circumstances. An Order to Show Cause shall be issued to Hunt & Henriques, LLP why it should not be sanctioned up to \$1,000 for misuse of the court process by refiling motions that have previously been adjudicated with no change in circumstance. The managing partner for Plaintiff's law firm shall personally appear in response to Order to Show Cause to explain this law firm's conduct and shall file a responsive declaration 15 days prior to the hearing.